Technical dictionary

Short editorial definitions for use with the reading translation. Section references return to the text.

adāʾ أَدَاء

Timely performance: discharging an act within its legally appointed time; distinguish repetition and make-up performance.

§57 · §59

ʿadāla عَدَالَة

Probity: a disposition supporting a transmitter's reliability, not a claim that every lapse destroys credibility.

§86 · §87 · §90 · §98

ʿāmm عَامّ

General expression: wording embracing the instances of a meaning. Do not confuse this linguistic scope with several equivocal meanings.

§169 · §170 · §174 · §177

ʿaql عَقْل

Intellect or reason; its relation to goodness, obligation and revealed authority is discussed without making theology the whole of uṣūl.

§11 · §13 · §37 · §45

aṣl أَصْل

Foundation, source, original case, or governing principle. In qiyās it is the case or meaning from which extension proceeds.

§62 · §141 · §210 · §212

ʿazīma / ʿazm عَزِيمَة / عَزْم

Original legal requirement, contrasted with a concession. The text uses the vocabulary of the unrelaxed requirement in defining the contrast.

§60

barāʾa aṣliyya بَرَاءَة أَصْلِيَّة

Original freedom from liability: obligation requires a warrant; absence of such a warrant is not itself a newly revealed duty.

§141 · §142 · §247

bāṭil / buṭlān بَاطِل / بُطْلَان

Invalid / invalidity. In contracts, absence of the intended legal effect; invalidity is not interchangeable with moral prohibition.

§28 · §56 · §206

bayān بَيَان

Clarification: whatever validly brings a meaning to understanding, including wording, context and explanatory action.

§159 · §160 · §161 · §228

burhān بُرْهَان

Demonstration or conclusive proof. Its logical analysis belongs to a different discipline from the present abridgement's immediate task.

§9 · §15 · §75

dalāla دَلَالَة

Indication or signification: the relation by which words, understood meanings, acts or approval make a ruling intelligible.

§148 · §149 · §150 · §193

dalīl دَلِيل

Evidence, indicator or proof. Its strength may be conclusive or probable; "proof" does not always mean logical demonstration.

§62 · §74 · §81 · §241

dalīl al-khiṭāb دَلِيل الْخِطَاب

Contrary implication inferred from a restriction, condition or qualification. Its force depends on context, not form alone.

§193 · §195

ḍamīr ضَمِير

Pronoun: an expression whose referent can be determinate or ambiguous; reference is one component of verbal indication.

§152 · §157 · §158

ḍarūra ضَرُورَة

Necessity or constraint. In practical law it can ground a concession; this is distinct from the epistemic sense of necessary knowledge.

§53 · §60

ḍarūrī ضَرُورِيّ

Necessary; in knowledge, immediately or inevitably known rather than acquired through a consciously constructed argument. In the title, what is indispensable to the craft.

§1 · §2 · §15 · §76

ḍidd ضِدّ

Contrary: opposed acts or qualities. Whether alternatives exhaust the possibilities is crucial to the argument about commands and prohibitions.

§26 · §32 · §33 · §34 · §52

farʿ فَرْع

Derivative case or branch of law; in qiyās, the case whose ruling is sought through a relation to the original.

§2 · §210 · §211

farḍ فَرْض

Obligatory requirement. The discussion records a distinction from wājib made by some jurists and its evidential basis.

§17

fasād فَسَاد

Corruption or invalidity; in legal use, failure of an act or contract in the respect relevant to its ruling.

§28 · §29 · §56 · §206

fiʿl فِعْل

Act: voluntary human performance or Prophetic action. An act has no imperative grammatical form of its own.

§43 · §150 · §228 · §229

fiqh فِقْه

Understanding of practical legal rulings. Detailed branch-law learning is related to, but not identical with, the requirements of independent inquiry.

§2 · §235 · §252

furūʿ فُرُوع

Branches or derivative rulings, distinguished from sources and the general method for understanding their indications.

§2 · §235 · §252

ghalabat al-ẓann غَلَبَة الظَّنّ

Preponderant judgement: the balance of probable evidence which guides action; it does not create truth merely through preference.

§90 · §237 · §241 · §257

ghāya غَايَة

End or limit. In a temporal expression such as “until night,” it means an endpoint, not a purposive final cause.

§2 · §195

ḥadd حَدّ

Definition or boundary. In another context, a prescribed penalty; these senses must not be collapsed into one English rendering.

§10 · §11 · §219

ḥadīth حَدِيث

A transmitted report, especially one attributed to the Prophet. The discussion distinguishes its wording, content, chain and resulting degree of assent.

§66 · §80 · §109 · §233

ḥākim حَاكِم

One who determines or commands; in the account of legal judgement, ultimately God, with derivative human authority distinguished.

§36 · §37

ḥaqīqa حَقِيقَة

Proper or literal usage, opposed to transferred or figurative usage; context determines which sense is established.

§65 · §153 · §162 · §164

ḥaraj حَرَج

Restriction, difficulty or legal impediment; removing a prohibition need not itself issue a positive recommendation.

§60 · §203

ḥarām حَرَام

Forbidden: subject to legal prohibition. Whether a forbidden act is also invalid is a further issue.

§17 · §28 · §206

ḥaṣr حَصْر

Restriction or exclusive limitation, conveyed by expressions such as innamā; its contrary implication is assessed contextually.

§195

ḥiss حِسّ

Sense perception. Actual sensory apprehension, not mere perceptibility, matters in the account of transmitted certainty.

§15 · §45 · §77 · §78

ḥujja حُجَّة

Authoritative evidence or argument capable of supporting a legal conclusion; its authority and degree of certainty are separate questions.

§1 · §81 · §130 · §144

ḥukm حُكْم

Judgement or ruling: the legal determination concerning an act, with its author, addressee and object analysed separately.

§10 · §11 · §17 · §36 · §239

ḥusn / qubḥ حُسْن / قُبْح

Goodness / badness: evaluative terms whose intrinsic, relational and revealed senses are distinguished at the beginning of the book.

§11 · §12 · §13

ʿibāda عِبَادَة

Worship or devotional observance. Its valid performance, intention and timing are analysed without identifying all legal consequences with worship.

§43 · §56 · §57

ibāḥa إِبَاحَة

Permission: a legal allowing of alternatives, distinguished from obligation and from mere absence of an established prohibition.

§16 · §17 · §27 · §203

ibdāl / tabdīl إِبْدَال / تَبْدِيل

Substitution: expression of a universal through a particular or vice versa, central to Ibn Rushd's account of semantic extension.

§154 · §165 · §191 · §212 · §221

idhn إِذْن

Permission or authorization; its context matters in reports about guardianship and in a teacher's authorization to transmit.

§103 · §171

ijāza إِجَازَة

Authorization to transmit, distinguished from hearing a reading, reading before the teacher, and receiving a written text.

§100 · §103 · §104

ijmāʿ إِجْمَاع

Consensus: agreement of those competent in the relevant inquiry. Mere majority, silence and unidentified Medinan practice are not equivalent to it.

§130 · §133 · §134 · §137 · §138

ijtihād اجْتِهَاد

Independent juristic inquiry: exertion of competent judgement concerning a ruling not already determined by conclusive evidence.

§231 · §236 · §237 · §250

ijzāʾ إِجْزَاء

Sufficiency or discharge: performance which fulfils the legally required act, including its relevant conditions.

§23 · §56 · §204 · §205

ʿilla عِلَّة

Effective ground or explanatory feature connecting a ruling with a case. It must be distinguished from a general benefit or an accidental concomitant.

§210 · §213 · §217 · §218 · §222

ʿilm عِلْم

Knowledge, sometimes certain cognition and sometimes a discipline. Its theoretical, practical and instrumental ends are distinguished.

§2 · §8 · §74 · §75

imkān إِمْكَان

Possibility: physical capacity to perform an act is not the same as the presence of every legal condition governing it.

§45 · §49 · §50

iqrār إِقْرَار

Tacit approval: the Prophet's non-objection in relevant circumstances, indicating permissibility rather than automatically establishing obligation.

§150 · §227

irāda إِرَادَة

Will or volition. Its relation to desire, assent and intending obedience is discussed in the account of voluntary action.

§43 · §44

ishtirāk اشْتِرَاك

Equivocation: one expression's established use for distinct meanings, not the inclusion of many instances within a single general meaning.

§158 · §177

istiʿāra اسْتِعَارَة

Transfer or metaphorical borrowing of an expression, one way words can signify beyond their original assignment.

§153 · §164 · §180

istidlāl اسْتِدْلَال

Inference or reasoning from an indication to what it establishes. It need not be a formal syllogism.

§1 · §2 · §81 · §148

istiḥsān اسْتِحْسَان

Juristic preference. A judgement so named needs a recognized evidential warrant; its name does not confer authority.

§146

istiqrāʾ اسْتِقْرَاء

Induction: discerning a pattern from cases, including the recovery of early jurists' implicit methods from their decisions.

§4 · §217

istiṣḥāb اسْتِصْحَاب

Presumption of continuity: retaining an established judgement, subject to whether the relevant case or attribute has changed.

§141 · §142

istiṣlāḥ اسْتِصْلَاح

Welfare-oriented reasoning. The Darūrī asks what makes a proposed benefit legally authoritative rather than merely attractive.

§146 · §217

istithnāʾ اسْتِثْنَاء

Exception: exclusion related to a statement's scope, with distinct problems of connection, reach and the genus excepted.

§183 · §184 · §185 · §186 · §187 · §188

jarḥ جَرْح

Criticism of a narrator's credibility or probity; the grounds and relative force of such criticism require assessment.

§94 · §95 · §96

jins جِنْس

Genus or kind: a grouping by an intelligible common feature, important in classification and in recognized suitable grounds.

§185 · §217 · §224

juzʾī جُزْئِيّ

Particular: an individual case or more restricted meaning relative to a universal. It is not simply a grammatical "specific expression."

§2 · §165 · §191 · §212

kalām كَلَام

Speech; also rational theology. Which sense applies depends on the argument, and the latter is not the whole subject of uṣūl.

§9 · §41 · §63 · §235

karāha كَرَاهَة

Dislike or disapproval, sometimes distinguished from strict prohibition; the required contextual indication must be examined.

§17 · §29 · §208

kasb / iktisāb كَسْب / اكْتِسَاب

Acquisition: the disputed account of human agency, choice and voluntary action. The reported theological positions are not all Ibn Rushd's own.

§43 · §44 · §45

khabar خَبَر

Report: a communicated assertion assessed through its source, wording and evidential consequences.

§66 · §74 · §80 · §109

khabar al-wāḥid خَبَر الْوَاحِد

Solitary report: a report not attaining the certainty of mass transmission; "solitary" does not necessarily mean only one transmitter at every stage.

§79 · §81 · §83 · §112

khāṣṣ خَاصّ

Specific expression: wording directly designating a restricted subject, which may nevertheless indicate an intended universal through context.

§165 · §191

khaṭaʾ خَطَأ

Error: failure to attain the true ruling or perform correctly. It can be pardoned without becoming correctness.

§237 · §243 · §244 · §245

khiṭāb خِطَاب

Address or discourse: the Lawgiver's communication as directed to an addressee concerning an act; context is constitutive of understanding.

§11 · §36 · §38 · §239

kināya كِنَايَة

Indirect expression: signifying by an associated meaning rather than simply naming the referent directly.

§164 · §167

kullī كُلِّيّ

Universal: a meaning under which particulars fall, crucial to understanding legal extension beyond a named example.

§2 · §165 · §191 · §212 · §221

lafẓ لَفْظ

Expression or wording; its verbal form is distinguished from the meaning indicated in the whole discourse.

§109 · §148 · §149 · §153

mafhūm مَفْهُوم

Understood import: the meaning apprehended through an expression and its context, including but not limited to contrary implication.

§149 · §193 · §194 · §195

maḥkūm ʿalayhi مَحْكُوم عَلَيْهِ

The person to whom the ruling applies; understanding, capacity and other conditions affect the nature of the address.

§36 · §38 · §42

maḥkūm fīhi مَحْكُوم فِيهِ

The act or matter about which a legal judgement is made; distinguish the person addressed by it.

§36 · §43

majāz مَجَاز

Figurative or transferred usage. It includes omission, addition and substitution, not merely literary metaphor.

§65 · §153 · §154 · §162 · §164

makrūh مَكْرُوه

Disapproved or disliked, one of the fivefold legal classifications; use in context can require distinction from outright forbiddance.

§17 · §208

maʿlūl مَعْلُول

That explained or grounded by an ʿilla; correspondence with a feature does not by itself establish explanatory dependence.

§210 · §220 · §222

maʿnā مَعْنَى

Meaning, intelligible content or relevant feature. Translating it uniformly as "cause" would conceal important distinctions.

§149 · §158 · §193 · §212

mandūb مَنْدُوب

Recommended: an act commended without being obligatorily demanded. Its contrary does not acquire a ruling by a purely verbal inversion.

§17 · §32 · §208

manṭūq مَنْطُوق

What is explicitly expressed, contrasted with the unmentioned case or the meaning understood beyond verbal form.

§149 · §191 · §210 · §212

maqṣūd مَقْصُود

What is intended: the intelligible aim of the address, recovered through indications rather than supplied by arbitrary preference.

§161 · §191 · §217 · §239

maʿqūl مَعْقُول

Intelligible meaning or object of understanding. In legal interpretation it contrasts with reliance upon verbal form alone.

§149 · §193 · §212

mashhūrāt مَشْهُورَات

Widely accepted propositions; general acceptance alone does not establish rational necessity or demonstrative truth.

§12

maṣlaḥa مَصْلَحَة

Benefit or welfare. Its legal authority depends on its relation to recognized purposes or evidence, not on attractiveness alone.

§146 · §217

mithāl مِثَال

Example or illustrative case; its relation to a universal meaning must be distinguished from a merely verbal likeness.

§1 · §6 · §212

muʾawwal مُؤَوَّل

Interpreted wording: an expression taken in a less immediately apparent sense because an adequate indication supports that reading.

§151 · §164 · §166

mubāḥ مُبَاح

Permitted: not demanded or forbidden in the respect being considered. Its status as “commanded” is itself disputed.

§16 · §17 · §27

mudrak مُدْرَك

Source or means of apprehension: where or how a judgement is known. The lexical vocalization has an initial ḍamma.

§13 · §47

mujmal مُجْمَل

Indeterminate wording or indication, insufficient by itself to select the required meaning; clarification can come through several kinds of evidence.

§151 · §155 · §158 · §214 · §218

mujtahid مُجْتَهِد

One qualified to undertake independent juristic inquiry; competence may concern a determinate question rather than every branch of law.

§231 · §232 · §233 · §234 · §236

mukallaf مُكَلَّف

A person subject to legal responsibility; physical action, comprehension and the relevant legal conditions must be distinguished.

§38 · §42 · §45 · §50

mukhayyil مُخَيِّل

A ground presenting a plausible rationale for a ruling, often considered with suitability. Not “imaginal” in the metaphysical sense.

§217 · §224

mulāʾim مُلَائِم

Congruent or fitting: a proposed ground related to a kind of consideration which revelation has recognized.

§217 · §224

munāsib مُنَاسِب

Suitable: a proposed ground connected intelligibly with a legally recognized benefit or prevention of harm.

§217 · §224

munāwala مُنَاوَلَة

Handing over a written text with authorization to transmit; distinct from direct hearing and a bare written attribution.

§104 · §105

muqaddima مُقَدِّمَة

Premise, or an introductory discussion. Premises can contribute to assent without being consciously arranged as a syllogism.

§9 · §75 · §76

muqayyad مُقَيَّد

Qualified: wording limited by a condition or attribute. Moving a qualification between contexts requires a warrant.

§189 · §195

mursal مُرْسَل

A report whose chain leaves an intermediary unmentioned; acceptance is discussed separately from connected transmission.

§111

musnad مُسْنَد

A report with an articulated connected attribution; its comparative force still depends on the relevant transmitters and circumstances.

§111

mutawātir مُتَوَاتِر

Mass-transmitted: a mode of communication yielding certainty through the circumstances of its transmission, not a universally fixed count.

§75 · §76 · §78

muṭlaq مُطْلَق

Unqualified: wording without a stated restriction in the relevant respect. Unqualified and general are not simply interchangeable categories.

§189 · §201 · §203

nadb نَدْب

Recommendation, distinct from obligation; its establishment depends on the relevant usage and indication.

§17 · §200 · §208

nahy نَهْي

Prohibition or prohibitive address. Its force, contextual restriction and possible effect on validity need separate analysis.

§28 · §197 · §206 · §208

naql نَقْل

Transmission; also a word's transfer from one usage to another. Context distinguishes the two technical senses.

§66 · §153 · §256

naskh نَسْخ

Abrogation: termination of an earlier legal ruling by later revelation; not identical with specification or additional explanation.

§114 · §115 · §118 · §126 · §181

naṣṣ نَصّ

Unambiguous indication: a determinate meaning, not simply any "text." The book admits unambiguity through understood import as well as wording.

§151 · §157 · §193 · §215

naẓar نَظَر

Inquiry or reflective consideration, including the disciplined examination of evidence; more specific than casual "looking."

§1 · §13 · §45 · §148

niyya نِيَّة

Intention: aiming at obedience or distinguishing a particular performance; not every legal effect depends on such an intention.

§22 · §43 · §47

qaḍāʾ قَضَاء

Make-up performance outside the appointed time; also judgement in other contexts. Whether it needs a distinct command is a central question.

§51 · §57 · §204

qarīna قَرِينَة

Contextual indication: verbal or circumstantial evidence that guides meaning, interpretation or an extension beyond the named case.

§161 · §166 · §193 · §213

qaṭʿī قَطْعِيّ

Conclusive: an indication or judgement not merely probable. Degrees of evidential clarity remain important for culpability.

§74 · §125 · §237 · §244

qiyās قِيَاس

Analogy or syllogistic inference, depending on context. Much juristic qiyās is analysed here as substitution within an understood meaning rather than a syllogism.

§210 · §212 · §223 · §226

qiyās al-shabah قِيَاس الشَّبَه

Analogy of resemblance: extending a ruling because a likeness is thought to contain a shared ground, without identifying that ground securely.

§218 · §224

qurʾ قُرْء

An equivocal legal expression for a menstrual period or a period of purity, used as an example of indeterminate wording.

§158

rāwī رَاوٍ

Narrator or transmitter. Reception, retention, probity, attribution and denial are separate aspects of assessment.

§83 · §85 · §94 · §107

rukhṣa رُخْصَة

Concession: a legally warranted relaxation under an impediment or need; not mere indulgence outside the Law.

§58 · §60

sabab سَبَب

Cause, occasion or sign. A legal cause may manifest a ruling without producing it as a physical cause produces an effect.

§54 · §55 · §176

sabr wa-taqsīm سَبْر وَتَقْسِيم

Testing and division: enumerating and examining candidates for a relevant ground, then eliminating those not warranted.

§220 · §221

ṣaḥīḥ / ṣiḥḥa صَحِيح / صِحَّة

Valid / validity; also soundness of a report in transmission. The intended legal or hadith sense must be specified.

§56 · §93 · §205

ṣalāḥ صَلَاح

Welfare, right ordering or fitness; its appearance in a proposed rationale must be disciplined by the Law's recognition.

§19 · §146 · §217

sharʿ شَرْع

Revealed Law or revelation as normative authority; distinguish its address from the jurist's reconstruction of a ruling.

§11 · §13 · §37 · §239

sharṭ شَرْط

Condition: a qualification for a legal ruling or valid performance; not every legal condition is a condition of physical possibility.

§23 · §49 · §50 · §56 · §195

shubha شُبْهَة

Ground of uncertainty or apparent likeness. Its exact force varies between evidential doubt and a proposed analogy.

§92 · §218 · §238

sibār سِبَار

Probe or testing instrument: the opening image for a discipline that guides the mind. It is not the name of a separate metaphysical science.

§2

ṣīgha صِيغَة

Verbal form: grammatical or conventional expression as distinct from the meaning understood in context.

§149 · §151 · §197 · §223

ṣināʿa صِنَاعَة

Craft or disciplined art: an organized competence governed by methods and standards, not modern industrial production.

§1 · §2 · §6 · §9

sunna سُنَّة

Prophetic normative teaching and practice; “it is Sunna” as a transmission formula must be assessed for its source and scope.

§66 · §71 · §114

taʿāruḍ تَعَارُض

Conflict of evidence: an apparent opposition requiring assessment of reconciliation, chronology, preference or suspension.

§96 · §181 · §229 · §246

taʿdīl تَعْدِيل

Attestation of probity, distinct from criticism and from an automatic guarantee of every report.

§94 · §95 · §96 · §97

takhṣīṣ تَخْصِيص

Specification: restricting a general expression’s scope on adequate evidence; chronology helps distinguish it from abrogation.

§174 · §181 · §182 · §190

taklīf تَكْلِيف

Legal responsibility or imposition of a duty, directed to an agent under conditions of comprehension and capacity.

§17 · §38 · §42 · §45

ṭaliba طَلِبَة

Request or petition, one of the forms of complete discourse. This is the noun for a request, not the plural ṭalaba, “students.”

§152 · §197

tamthīl تَمْثِيل

Exemplification or reasoning by a comparable particular; do not assume that every legal extension has this structure.

§1 · §210 · §212 · §223

tanbīh تَنْبِيه

Indication or directing attention to an unstated meaning, often through the relation between a named particular and an intended universal.

§191 · §209 · §212 · §215

taqlīd تَقْلِيد

Following another’s authority. Trustworthy expert reliance is distinguished from treating memorized school opinions as independent evidence.

§249 · §250 · §251 · §252 · §255

tarjīḥ تَرْجِيح

Giving greater weight: preferring the stronger evidence or judgement on a relevant ground, not free personal choice.

§96 · §246 · §256 · §257

taṣdīq تَصْدِيق

Assent to an assertion. Its cause, necessity and degree are discussed especially in the analysis of mass transmission.

§15 · §44 · §74 · §75 · §76

taṣwīb تَصْوِيب

Declaring juristic conclusions correct; the debate asks whether every qualified conclusion is true or whether one determinate ruling is sought.

§237 · §239 · §240 · §243

taʾthīm تَأْثِيم

Attribution of sin. Its absence does not entail the absence of error; knowledge and the accessibility of evidence matter.

§242 · §243 · §244 · §245

tawaqquf تَوَقُّف

Suspension of judgement when the evidence does not justify a determinate conclusion; distinct from arbitrary choice.

§229 · §246

tawātur تَوَاتُر

Mass transmission producing certainty, whose conditions are contextual and not captured by a single numerical threshold.

§74 · §75 · §76 · §78

taʾwīl تَأْوِيل

Interpretation supported by evidence, especially departure from an expression’s apparent meaning to a less evident one.

§164 · §166 · §171

tawqīf تَوْقِيف

Dependence on revealed instruction; in §229 the printed term is understood contextually as withholding judgement. Note the distinct usages.

§49 · §229

ʿumūm عُمُوم

Generality: inclusion of the instances falling within a meaning. Its force differs across forms and contexts.

§169 · §170 · §174 · §178

ʿumūm al-balwā عُمُوم الْبَلْوَى

Widespread practical need: a consideration in assessing whether a solitary report plausibly preserves a generally required observance.

§112 · §113

ʿurf عُرْف

Established usage or convention, linguistic or legal; a command's force must be learned in its relevant convention.

§153 · §199 · §200 · §203

uṣūl al-fiqh أُصُول الْفِقْهِ

Principles of jurisprudence: in this abridgement, above all the disciplined understanding of revealed indications and the means of reaching rulings.

§1 · §2 · §5 · §6 · §148

waḍʿ وَضْع

Assignment or institution of a word's meaning; distinguish original linguistic assignment from subsequent transfer and specialized legal usage.

§153 · §199

wājib وَاجِب

Obligatory: legally demanded. Alternative duties, extended times, necessary means and culpability prevent a merely schematic definition from doing all the work.

§17 · §18 · §21 · §23 · §243

yaqīn يَقِين

Certainty: assent not merely outweighed probability. Its sources and possible degrees are discussed without reducing it to a transmitter count.

§74 · §75 · §78 · §125

ẓāhir ظَاهِر

Apparent or prima-facie indication: the meaning more readily warranted, though another remains possible. It can arise from understood import as well as verbal form.

§164 · §166 · §193 · §224

ẓann ظَنّ

Probable judgement: an evidentially grounded but nonconclusive assent, not necessarily a pejorative "guess."

§74 · §79 · §90 · §237 · §257

ziyāda زِيَادَة

Addition: extra wording in a report, an added legal requirement, or linguistic surplus; these distinct contexts have different rules.

§108 · §118 · §154